

Datum
Date 18.04.2016
Date

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Sheet 1
Feuille

Anmelde-Nr:
Application No: 08 721 882.2
Demande n°:

The examination is being carried out on the **following application documents**

Description, Pages

1-15 filed with entry into the regional phase before the EPO

Claims, Numbers

1-7 received on 15-12-2014 with letter of 12-12-2014

Drawings, Sheets

1/3-3/3 filed with entry into the regional phase before the EPO

1. The submissions of the applicant regarding added subject-matter, novelty and inventive step have been considered. The examining division can partially follow the line of argumentation of the applicant, but is of the opinion that the newly filed set of claims still does not meet requirements of the EPC, because a lack of support (Article 83 EPC) arises for the medical use defined in claims 2-7. The subject-matter of claims 2, 4 and 6 in addition lacks clarity (Article 84 EPC).

1.1 In his letter of reply the applicant makes a clear distinction between (i) normal physiological fatigue in healthy individuals and (ii) fatigue that is a manifestation of a pathological condition. The experimental section of the present application however does not deal with the latter type of fatigue.

1.2 The experimental section of the application only provides evidence for the treatment or prevention of fatigue and ketosis caused by sleep disturbance and physical exercise (see Examples 1-4) in healthy individuals. No data are provided as regards the treatment or prevention in sick individuals of a disease that involves fatigue, let alone chronic fatigue syndrome. Accordingly, the claimed medical use does not appear to be sufficiently disclosed and as such claims 2-7 do not meet the requirements of Article 83 EPC.

Datum
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Blatt
Sheet 2
Feuille

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1.3 The term "*disorder that involves fatigue*" used in claims 2, 4 and 6 is vague and unclear and leaves the reader in doubt as to the particular disorders to which it refers, thereby rendering the definition of the subject-matter of said claim unclear (Article 84 EPC).

2. In view of the above objections under Article 83 and 84 EPC it is not at present practicable to carry out a full examination as regards novelty and inventive step of the claims 2-7. Should the applicant be of the opinion that the Examples 1-4 of the present application provide sufficient support for the claimed medical use in that a defined medical indication can be easily derived from the effect shown on normal physiological fatigue, then at least the subject-matter of claims 6-7 cannot be regarded inventive (Article 56 EPC) over D3 (= Exhibit 2 cited by a third party on 14/07/2010), D10 and D11, since these documents disclose the treatment (D3: "*removing tiredness*"; D10: "*recovering from physical fatigue*") and the prevention (D11: "*increasing endurance and exercise capacity*") of normal physiological fatigue in healthy individuals by the administration of sesame (= composition comprising sesamin and/or episesamin). Prevention of fatigue by the administration of sesame is furthermore anticipated by Exhibit 3, Exhibit 4 and Exhibit 5 cited by the third party on 14/07/2010. These documents teach the strength promoting property of sesame, which implies that fatigue is prevented, since fatigue reduces strength.

3. The applicant is invited to file a new set of claims which takes account of the above comments. The applicant should at the same time bring the description into conformity with the amended claims. Care should be taken during revision, especially of the introductory portion and of any statements of problem or advantage, not to add subject-matter which extends beyond the content of the application as originally filed (Article 123(2) EPC).

4. To meet the requirements of Rule 42(1)(b) EPC, at least the documents D3, D10 and D11 should be identified in the description and the relevant background art disclosed therein should be briefly discussed.

5. Amendments should be made by filing replacement pages. Unnecessary recasting of the description should be avoided. An amended abstract is not required. The applicant should also take account of the requirements of Rule 50(1) EPC. According to Rule 50(1) in conjunction with Rule 49(8) EPC, amendments shall be typed or printed. Handwritten amendments may only be made in documents other

Datum
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Blatt
Sheet 3
Feuille

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Demande n°:

than those replacing application documents (Rule 50(2) EPC); they may, for example, be used to fulfil the requirements of Rule 137(4) EPC (identifying amendments and indicating basis for them).

6. In order to comply with the requirements of Rule 137(4) EPC, the applicant should clearly identify the amendments made, irrespective of whether they concern amendments by addition, replacement or deletion, and indicate the passages of the application as filed on which these amendments are based (see Guidelines H III, 2.1).